Brighton
PROCUREMENT & CONTRACTS
500 South 4th Avenue Brighton, CO 80601

SOLICITATION GENERAL TERMS AND CONDITIONS

Respondents are required to submit responses in accordance with the following expressed conditions:

APPLICABILITY:
These General Terms and Conditions apply, but are not limited, to all bids, offers, proposals, qualifications, quotations, and responses (the “Response”) made to the City of Brighton (the "City") by all prospective contractors, contractors, bidders, firms, companies, publishers, consultants, or suppliers (the “Contractor” or "Contractors") in response, but not limited, to all Invitations to Bid, Requests for Proposals, Requests for Qualifications, and Requests for Quotations (the “Solicitation” or “Solicitations”).

CONTENT OF RESPONSES:

A. PREPARATION

1. The Response must be typed or legibly printed in ink. The use of erasable ink is not permitted. All corrections made by the Contractor must be initialed in ink by the authorized agent of the Contractor.

2. Responses must contain the signature of an authorized representative, in ink or an electronic signature**,** of the Contractor in the space provided on the Solicitation cover sheet. The original cover sheet of this Solicitation must be included in all Responses. If the Contractor’s authorized representative fails to sign and return the original cover sheet of the Solicitation, its Response may be disqualified and may not be considered.

3. Unit prices shall be provided by the Contractor on the City’s specific form when required in conjunction with the prescribed method of award and shall be for the unit of measure requested. Prices that are not in accordance with the measurements and descriptions requested shall be considered non-responsive and shall not be considered for award. Where there is a discrepancy between the unit price and the extension of prices, the unit price shall prevail. Pricing form must be submitted with the Response.

4. Alternate Responses will not be considered unless expressly permitted by the Terms and Conditions.

5. The accuracy of the Response is the sole responsibility of the Contractor. No changes in the Response shall be allowed after the date and time that submission of the Responses is due.

B. SUBMISSION

1. The response must be received before the due date and time as specified on the Solicitation Cover Sheet. It is the responsibility of the Contractor to ensure that

electronic submittals are received prior to the closing time specified. Electronic submissions will only be accepted online via BidNet Direct, https://www.Bidnetdirect.com/colorado/city-of-brighton. Questions or technical difficulties should be directed to the website's Vendor Support Team, (800) 835-4603, option 2.

2. The Electronic Response shall include the Contractor's name and the Solicitation number. The City's form(s), included with this Solicitation, must be used when the Contractor is submitting its Response. The Contractor shall not alter the City's form(s) (e.g. add or modify categories for posting prices offered) unless expressly permitted in the Solicitation or in an addendum duly issued by the City. No other form shall be accepted. Alteration of the City's form(s) may result in rejection of the Contractor's Response, deeming it non-responsive.

3. Each Response must be submitted at the time and place specified in the Solicitation Documents. Failure to submit a Response in the required format may deem the Contractor's Response non-responsive. The City will only accept electronic submissions through BidNet Direct.

4. Failure to provide any requested information may result in the rejection of the Response as non-responsive.

5. Contractor is responsible for ensuring their Response is received by the City of Brighton Procurement & Contracts Division prior to the deadline outlined in the solicitation document.

6. Contractors, which qualify their Responses by requiring alternate contractual terms and conditions as a stipulation for contract award must include such, alternate terms, and conditions in their Responses. The City reserves the right to declare a Contractor's Response as non-responsive if any of these alternate terms and conditions are in conflict with the City's terms and conditions, or if they are not in the best interests of the City.

C. PRICES CONTAINED IN RESPONSE-DISCOUNTS, TAXES, COLLUSION

1. Contractors shall not include federal, state, or local excise or sales taxes in prices offered, as the City is exempt from payment of such taxes.
   - Federal Identification Number: 84-6000567
   - State of Colorado Tax Exempt Number: 098-03722

2. Contractor, by affixing its signature to its Response, certifies that its Response is made without previous understanding, agreement, or connection either with any persons, firms or corporations making a Response for the same items, or with the City. The Contractor also certifies that its Response is in all respects fair, without outside control, collusion, fraud, or otherwise illegal action. To insure integrity of the City's public procurement process, all Contractors are hereby placed on notice that any and all Contractors who falsify the certifications required in conjunction with this section will be prosecuted to the fullest extent of the law.

D. LATE RESPONSES. Responses received after the date and time set for the opening shall be considered non-responsive and shall not be considered for award. The City assumes no responsibility for failure of any computer software, online platform, or equipment, either within

its facilities or from outside causes.

E. CLARIFICATION AND MODIFICATIONS IN TERMS AND CONDITIONS

1. Where there appears to be variances or conflicts between the General Terms and Conditions, the Special Terms and Conditions and the Technical Specifications outlined in this Solicitation, the General Terms and Conditions, Technical Specifications, and then the Special Terms and Conditions, will prevail.

2. If any Contractor contemplating submitting a Response under this Solicitation is in doubt as to the true meaning of the specifications or any other portion of the Solicitation, the Contractor must submit a written request via email for clarification to the single Point of Contact listed on the Cover Sheet of this Solicitation. The Contractor submitting the request shall be responsible for ensuring that the request is received by the City prior to the deadline for submitting questions. No verbal voice messages or inquiries will be accepted or addressed. **The subject line of all emailed questions shall read *"[Solicitation Number and Project Name] – Questions"* in order to be processed.**

3. The City shall issue a written addendum if substantial changes which impact the technical submission of Responses are required. A copy of such addenda will be made available on BidNet Direct. In the event of conflict with the original Solicitation documents, addenda shall supersede to the extent specified. Subsequent addenda shall supersede prior addenda only to the extent specified. Contractor is responsible for obtaining and acknowledging all subsequent addenda via BidNet Direct. Failure to separately acknowledge any and all subsequent addendum/addenda on the appropriate City form may deem the contractor non-responsive. Any contractor deemed non-responsive will not have the ability to appeal award decision(s).

4. Any official interpretation of this Solicitation must be made by an agent of the City's Procurement & Contracts Division who is authorized to act on behalf of the City. The City shall not be responsible for interpretations offered by employees of the City who are not agents of the City's Procurement & Contracts Division.

C. MODIFICATIONS TO RESPONSES. Responses may only be modified in the form of a written notice on Contractor letterhead and must be received prior to the time and date set for the Responses to be opened. Each modification submitted to the City's Procurement & Contracts Division must have the Contractor's name and the applicable Solicitation number and title clearly marked in the email subject line and modification letter. If more than one modification is submitted, the modification bearing the latest date of receipt by the City's Procurement & Contracts Division will be considered the valid modification.

D. WITHDRAWAL OF RESPONSES

1. Responses may be withdrawn in the form of a written notice on Contractor letterhead and must be received prior to the time and date set for the opening of Responses. Any withdrawal of a Response submitted to City of Brighton Procurement & Contracts Division must have the Contractor's name and the applicable Solicitation number and title clearly marked in the email subject line and on the withdrawal letter.

2. Responses may not be withdrawn after the time and date set for the opening for a period of no less than ninety (90) calendar days. If a Response is withdrawn by the Contractor during this ninety-day period, the City may, at its option, suspend the Contractor and may not accept any Response from the Contractor for a six-month period following the withdrawal.

REJECTION OF RESPONSES

A. The City may, at its sole and absolute discretion:

1. Reject any and all, or parts of any or all, Responses submitted by prospective Contractors;
2. Re-advertise this Solicitation;
3. Postpone or cancel the process;
4. Waive any irregularities in the Responses received in conjunction with this Solicitation; and/or
5. Determine the criteria and process whereby Responses are evaluated and awarded.

B. In addition to any reason identified in subsection A above, the City may reject a particular Response under any of the following conditions:

1. The Contractor misstates or conceals any material fact in its Response;
2. The Contractor's Response does not strictly conform to the law or the requirements of the Solicitation;
3. The Response expressly requires or implies a conditional award that conflicts with the method of award stipulated in the Solicitation;
4. The Response does not include documents, including but not limited to certificates, licenses, and/or samples, which are required for submission with the Response by the Solicitation; and/or
5. The Response has not been executed by the Contractor through an authorized signature on the Solicitation's Cover Sheet.

C. ELIMINATION FROM CONSIDERATION

1. A Response may not be accepted from, nor any contract be awarded to, any person or firm which is in arrears to the City upon any debt or contract or which is a defaulter as surety or otherwise upon any obligation to the City.
2. A Response may not be accepted from, nor any contract be awarded to, any person or firm which does not possess a valid license to conduct business.
3. A Response may not be accepted from, nor any contract be awarded to, any person or firm which is in poor standing with the Colorado Secretary of State's Office. Good standing shall be evidenced by a currently-dated Certificate of Fact of Good Standing produced by the Colorado Secretary of State's Office. A person or firm may qualify for exemption of this requirement under C.R.S. Title 7 Corporations and Associations. It is the Contractor's responsibility to familiarize themselves with these regulations and submit sufficient explanation of such qualifying exemption, if it exists, with the Response.
4. A Response may not be accepted from, nor any contract awarded to, any person or firm who has failed to perform faithfully any previous contract with the City or other governmental entity for a minimum period of three (3) years after the previous contract was terminated for cause.
5. A Response may not be accepted from, nor any contract awarded to, any person or firm who has been suspended or debarred from receiving an award at the City, State, or Federal level.

D. No damages shall be recoverable by any challenger as a result of the determinations listed in this Section or decisions by the City.

QUALIFICATIONS OF CONTRACTOR: The City may make such investigations as deemed necessary to determine the ability of the Contractor to perform work, and the Contractor shall furnish all information and data for this purpose as the City requests. Such information includes but is not limited to current/maximum bonding capabilities, current licensing information, audited financial statements, history of the firm on assessments of liquidated damages, contracts cancelled prior to completion and/or lawsuits and/or pending lawsuits against the firm and/or its principals. The City reserves the right to reject any Response if the evidence submitted by, or investigation of, such Contractor fails to satisfy the City that such Contractor is properly qualified to carry out the obligations of the contract and to complete the work contemplated therein. Conditional Responses will not be accepted.

GENERAL CONDITIONS:

1. Contractors shall make all investigations necessary to thoroughly inform themselves regarding the plant and facilities affected by the delivery of materials and equipment as required by the conditions of the Solicitation. No plea of ignorance by the Contractor of conditions that exist or that may hereafter exist will be accepted as the basis for varying the requirements of the City or the compensation to the Contractor.

2. Contractors are advised that all City Solicitations and contracts are subject to all requirements contained in the City's Policies, Municipal Code, and state and federal statutes. When conflicts occur, the highest authority will prevail.

3. Contractors are required to state exactly what they intend to furnish to the City in their Response and must indicate any variances to the terms, conditions, and specifications of this Solicitation no matter how slight. If variations are not stated in a Contractor's Response, it shall be construed that the Contractor's Response fully complies with all conditions identified in this Solicitation.

4. The City intends and expects that the contracting processes of the City and its Contractors provide equal opportunity without regard to disability, race, creed, color, sex, sexual orientation, religion, age, national origin, or ancestry and that its Contractors make available equal opportunities to the extent third parties are engaged to provide goods and services to the City as subcontractors, contractors, or otherwise. Accordingly, the Contractor shall not discriminate on any of the foregoing grounds in the performance of any contract awarded to the Contractor and shall make available equal opportunities to the extent third parties are engaged to provide goods and services in connection with performance of the contract. The Contractor shall disseminate information regarding all subcontracting opportunities under the contract in a manner reasonably calculated to reach all qualified potential subcontractors who may be interested. The Contractor shall maintain records demonstrating its compliance with this provision and shall make such records available to the City upon the City's request.

5. If submitting as a joint venture involving a partnership arrangement, articles of partnership, joint venture Contract, or similar documentation, stating each person/partner's obligations and responsibilities shall be furnished and submitted with the Response.

6. All Responses and other materials submitted in response to this Solicitation shall become the property of the City and shall be considered public information and subject to disclosure pursuant to the Colorado Open Records Act (CORA). By submitting a Response, Contractor affirms that confidential, proprietary, trade secret, or otherwise privileged information provided in its Response or other submitted materials has been clearly labeled as such. The City accepts no liability for the release of information as required by CORA which the Contractor failed to identify as reasonably confidential, proprietary, trade secret, or otherwise privileged.

AWARD OF SOLICITATION. The City shall award this Solicitation to the successful Contractor through the issuance of a Notice of Recommendation for Award (NORA). All Contractors that participated in the Solicitation process will be notified of contractor selection through BidNet Direct. No services or goods shall be provided, and no compensation shall be paid, until and unless a contract has been fully executed by an authorized representative of the City and the Contractor.

SOLICITATION PROTESTS. Pursuant to Municipal Code Section 3-8-140, Contractors may protest the Notice of Recommendation to Award (NORA) decision by submitting a request in writing to the City of Brighton Procurement & Contracts Manager and City Manager, within five (5) business days of receiving notice that the Contractor's bid or proposal has been rejected or not accepted. Protests shall be limited to the following bases: (a) failure to follow the City's procedure, (b) failure to follow the terms of the solicitation, or (c) bias or discrimination. The written claim by the Aggrieved shall state the specific circumstances that were alleged to have occurred along with supporting evidence in order for the City to sufficiently investigate the claim. Contractors who did not submit a bid or proposal are ineligible to participate in the solicitation protest process.

SPECIAL TERMS AND CONDITIONS

A. The City may request references from the Contractor that demonstrate the Contractor's ability to complete the scope of services stated within the Solicitation. References shall only be provided upon separate, written request from the City of Brighton Procurement & Contracts Division.

B. The City of Brighton encourages and participates in cooperative purchasing efforts to leverage volume purchasing and assist other governmental agencies pursuant to Brighton Municipal Code Article 3-8 Contracts and Purchases. To the extent other state or local government agencies, school districts, or political subdivisions are legally able to participate in cooperative purchasing endeavors, the City of Brighton supports such cooperative activities. Therefore, the City of Brighton allows other public agencies the opportunity to utilize the resulting contract at the option of the Contractor at the Contractor's discretion. The Contractor(s) must deal directly with the public or governmental agencies concerning the contract documents, purchase order issuance, freight charges, contractual disputes, invoicing, and payment. The City of Brighton shall not be liable for any costs or damages incurred by another public or governmental agency that participates in such cooperative purchasing.

CONTRACTUAL OBLIGATIONS

A. The successful Contractor will be required to sign a contract substantially similar to the contract form attached hereto. The City reserves the right to add or delete provisions to the form prior to contract execution.

B. Contractor is responsible for reviewing the form contract and understanding the terms and conditions contained therein, including but not limited to insurance requirements,

accessibility requirements, indemnification, worker without authorization, equal opportunity, non-appropriation, termination, etc.

C. Contractor's Response must state its willingness to enter into the form contract or Contractor shall identify and include any proposed revisions they have for the form contract. The identification of willingness to enter into the standard contract is for general purposes at this time but is part of the evaluation process and must be included. There may be negotiations on a project-by-project basis that provide further clarification.

D. Pursuant to any resulting award, Contractor(s) will discount all transactions as agreed. In the event the City discovers, through its contract monitoring process or formal audit process, that material was priced incorrectly, Contractor(s) agree to promptly refund all overpayments and to pay all reasonable audit expenses incurred as a result of the non-compliance.

E. WARRANTIES

1. Respondent warrants that all work performed hereunder shall be performed with the highest degree of competence and care in accordance with accepted standards for work of a similar nature.

2. Unless otherwise provided in the Agreement, all materials and equipment incorporated into any work shall be new and, where not specified, of the most suitable grade of their respective kinds for their intended use, and all workmanship shall be acceptable to City.

3. Respondent warrants all equipment, materials, labor and other work, provided under this Agreement, except City-furnished materials, equipment and labor, against defects and nonconformances in design, materials and workmanship for a period beginning with the start of the work and ending twelve (12) months from and after final acceptance under the Agreement, regardless whether the same were furnished or performed by Respondent or by any of its subcontractors of any tier. Upon receipt of written notice from City of any such defect or nonconformances, the affected item or part thereof shall be redesigned, repaired or replaced by Service Provider in a manner and at a time acceptable to City.

4. Respondent must provide details of any alternative warranty terms and conditions with the Response, if proposed, for the City's review.